Galveston County District Court

Cause No. 2024-CV-0042

Samantha Steele, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	August 23, 2024
Plaintiff's counsel:	Joshua Whitney, Morris & Miller LLP

PARTIES

Plaintiff Samantha Steele is an individual residing in Texas who was opertaing a passenger vehicle at the time of the collision described below. Defendant is an automobile liability insurer authorized to transact business in the State of Texas, which issued the policy under which Plaintiff seeks coverage and benefits. Defendant may be served through its registered agent for srevice of process.

FACTS

On January 12, 2024, Plaintiff was lawfully driving through a signalized intersection in League City when another vehicle, insured under a poilcy issued by Defendant, failed to yield and struck the driver's side of Plaintiff's vehicle in a broadside collision. The impact caused Plaintiff's vehicle to spin and strike a utility pole. Plaintiff reported the collision to Defendant promptly and cooperated with its claims investigation. Defendant has acknowledged the insured driver's responsibility for the collision in part, yet has not offered payment sufficient to compensate Plaintiff's losses.

NEGLIGENCE

The insured driver owed a duty to operate the vehicle with reasonable care, including obeying traffic control devices and yielding the right-of-way. The insured driver breached that duty by entering the intersection against a red signal and failing to keep a proper lookout. Defendant, as the liability insurer, is obligated under the policy and Texas law to indemnify its insured for damages arising from that negligence and to handle claims in good faith. Defendant has failed to fairly settle the claim despite liability becoming reasonably clear, in violation of Texas Insurance Code Chapter 541 and Chapter 542.

DAMAGES

As a direct result of the collision, Plaintiff sustained a fractured wrist requiring immobilization, surgical evaluation, and a course of physical therapy. Plaintiff has incurred medical expenses, lost wages from time away from work, and continuing pain and reduced function in the affected hand. Plaintiff seeks recovery of economic damages, non-economic damages, pre- and post-judgment interest, costs of court, and statutory relief available under Texas law. Plaintiff demands payment in the amount of $248,000.00.